

फार्म नं. 1

प्रथम सूचना प्रतिवेदन (धारा 173 बी एन एस एस के अन्तर्गत)

वि.पु.स्था.सी-

II

FIRST INFORMATION REPORT (Under Sec.173 BNSS)

S.P.E.C.-II

बुक नं.

क्रम सं.

Book No. 2024

Serial No. 34

1.	जिला:	थाना:	वर्ष:	प्र. सू. प्र. क्र.	दिनांक:
	District	PS:	Year	FIR No.	Date
	Chandigarh	CBI, ACB, CHG	2024	RC0052024A0034	22.12.2024

2.	(1)	विधान:	धाराएं:
		Act PC Act, 1988	Sections: 7A
		(as amended in 2018)	

(2)	विधान:	धाराएं:
	Act -	
		Sections: -

(3)	विधान:	धाराएं:
	Act -	
		Sections: -

(4)	अन्य विधान एवं धाराएं:	
	Others Acts & Sections	-

3.	(क)	प्रतीत अपराध:
		Suspected Offence : Demand of undue advantage.

(ख)	दिन	दिनांक	समय
(b)	Day	Date	Time

From 22.12.2024 onwards.

(ग)	थाने पर सूचना प्राप्त होने का	दिनांक
(c)	Information received at PS	Date
	CBI, ACB, Chandigarh	22.12.2024

कायमी अपराध :	दिनांक	समय
Entry No.	Date	Time
05	22.12.2024	01.40 PM

4.	सूचना का प्रकार :	लिखित/मौखिक
	Type of information	Written/Oral
	Complaint	Written

5.	घटना का स्थान	
	Place of occurrence	Chandigarh
(क)	थाने से दिशा व दूरी :	
(a)	Direction & Distance from PS :	-

बीट सं./Beat No.

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- (ख) पता:
(b) Addresses: **Chandigarh**

- (ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना-
(c) In case, outside the limit of this Police Station, then

पुलिस थाना का नाम जिला
Name of PS - District-

6. अभियोगी/सूचनाकर्ता
Complainant / Informant. Complainant

- (क) नाम
(a) Name **Sh. Rajneesh Bansal**
- (ख) पिता/पति का नाम
(b) Father's/Husband's Name **S/o Sh. Naresh Gupta**
- (ग) जन्म तिथि (घ) राष्ट्रीयता
(c) Date of Birth - (d) Nationality **Indian**
- (ड.) पासपोर्ट नं.....जारी दिनांक.....जारी होने का स्थान
(e) Passport No. - Date of Issue - Place of issue-
- (च) व्यवसाय
(f) Profession **Chairman of Himalayan Group of Professional Institutions, kale Aam, District-Sirmour.**
- (छ) पता-
(g) Address – **Himalayan Group of Professional Institutions, kale Aam, District-Sirmour.**
7. ज्ञात/संदेही/अज्ञात/आरोपी का पूर्ण विवरण
Details of known/suspected/unknown accused with full particulars
(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
(Attached separate sheet, if necessary)

1. **Mr. Munawar, Private Person.**

8. अभियोगी/सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण:
Reasons for delay in reporting by the complainant/informant.
—
9. अपहृत/सम्बद्ध सम्पत्ति का पूर्ण विवरण (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)
—
10. अपहृत/सम्बद्ध सम्पत्ति का मूल्य:
Total value of property stolen
—
11. मर्ग/अकाल मृत्यु सूचना क्रमांक:
Inquest Report/U.D. Case No., if any,
—
12. प्रथम सूचना का विवरण:- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)

Verification report dated 22.12.2024 of Sh. Sonal Mishra, Inspector, CBI, ACB, Chandigarh and complaint dated 22.12.2024 of Sh. Rajneesh Bansal S/o Sh. Naresh Gupta are attached as per Annexure "A" & "B" respectively. The allegations mentioned in the complaint were verified by Sh. Sonal Mishra, Inspector, CBI, ACB, Chandigarh and found to be true.

Hence, a Regular Case is registered and entrusted to Inspector Vikas Sharma, CBI, ACB, Chandigarh.

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13. कार्यवाही जो की गई: चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा(ओं) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है
Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2.

- (1) मामला पंजीकृत किया गया एवं जांच प्रारंभ हुआ अथवा
Registered the case and took up the investigation or
Took up for investigation

A regular case is registered.

- (2) निर्देशित (जांच अधिकारी का नाम) रैंक नं. जांच हेतु लिया गया
Directed (Name of IO) Rank No Took up for
Investigation

**Sh. Vikas Sharma, Inspector,
CBI, ACB, Chandigarh**

Yes

- (3) कारण से जांच के नामंजूर अथवा
Refused investigation due to or

- (4) पुलिस थाना को स्थानांतरित किया गया जिला क्षेत्राधिकार के आधार पर
Transferred to PS District on point of jurisdiction

अभियोगी/सूचनाकर्ता को प्र. सू. पत्र पढ़ाकर/पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वीकार किया।
इसकी एक प्रति अभियोगी/सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।
R.O.A.C.

14. अभियोगी/सूचनाकर्ता के हस्ताक्षर
Signature/Thumb Impression
of the complainant/informant

थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station

नाम / Name **(Ashwin Shenvi) IPS**
(पद) / Rank **Head of Branch, CBI,
DSPE, ACB, Chandigarh.**

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the Court

(Ashwin Shenvi) IPS
**Head of Branch, CBI,
DSPE, ACB, Chandigarh.**

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report -- **NIL**

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण:-

Physical features, deformities and other details of the suspect/accused: (if known/seen)

क्र.सं. S.N o.	*लिंग (Sex)	*जन्म की तारीख / वर्ष Date/Ye ar of Birth	*शारीर क गठन (Built)	*ऊंचाई से. मी. में (Heigh t) (in cms)	*वर्ण (Complexio n)	*पहचान चिन्ह (Identificati on Mark/s)
1	2	3	4	5	6	7
-	-	-	-	-	-	-

विरूपता/विलक्षणता (Deformities/ peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress Habit/s)
8	9	10	11	12	13
-	-	-	-	-	-

भाषा / बोली (Language / Dialect)	स्थान / Place of				
	जले का निशान (Burn Mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जख्म चिन्ह (Scar)	गोदना (Tattoo)
14	15	16	17	18	19
-	-	-	-	-	-

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

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CONFIDENTIALVERIFICATION REPORT DATED 22.12.2024

Today, i.e. on 22.12.2024 I received the directions of supervisory officer meet complainant Sh. Rajnish Bansal in sector 43 Chandigarh to receive the complaint of demand of bribe by a public servant and to verify the same. I contacted the said complainant telephonically and he asked me to meet him in Hotel Metro sector 43 Chandigarh at around 10 AM. Accordingly I arranged one Sony Digital Voice Recorder from CBI Office along with 02 new memory cards for the purpose of verification. Thereafter, at about 10:00 AM, I alongwith Constable Rajwant Singh left CBI Office, Chandigarh in office vehicle and met Sh. Rajnish Bansal in room no. 103 in Metro Hotel, Sector-43, Chandigarh. The complainant Sh. Bhupinder Kumar Sharma handed over to me a complaint dated 22.12.2024 written in English addressed to "The DIG, CBI, ACB, Chandigarh". I perused the said complaint and discussed the contents of the complaint. I discussed the contents of the complaint with the complainant Sh. Rajnish Bansal in detail. Sh. Rajnish Bansal, complainant identified his signature on each page of the said complaint dated 22.12.2024 and also owned the contents of the complaint. I informed & discussed the facts with Supervisory Officer and he directed me to conduct the secret verification with regard to the complaint.

Contents of the complaint:

Sh. Rajneesh Bansal, complainant in his complaint dated 22.12.2024 has alleged that he is chairman of Himalayan Group of Professional Institutions, Kale Aam, District-Sirmour. The complainant further informed in his complaint that a case has been registered at Enforcement Directorate (ED) office, Shimla (HP) against his institution and the case is being investigated by Sh. Vishal Deep (Assistant Director), ED, Shimla (HP), Neeraj and Sunil (both Enforcement Officers at ED, Shimla). He was called to ED Office, Shimla on 10.12.2024 & 19.12.2024 for examination in the case.

He further informed that on 19.12.2024, he appeared in the ED Office Shimla in connection with the investigation of the case. Subsequently, Sh. Neeraj and Sh. Sunil, both EO (Enforcement Officer) in ED Office, Shimla interrogated him. During interrogation, both Sh. Neeraj and Sh. Sunil demanded Rs. 20 lacs in lieu of not arresting him. Thereafter, he was produced before Sh. Vishal Deep in his office chamber. During examination, Sh. Vishal Deep also demanded Rs.1.10 crore from the complainant and on further negotiation the matter was settled at Rs.60 Lacs. Sh. Vishal Deep further directed him that he would call him on Sunday i.e. 22.12.2024 and he would collect demanded bribe amount of Rs.60 lacs from him in Chandigarh.

As the Complainant Rajneesh Bansal was disinclined to give bribe amount demanded by suspect Sh. Vishal Deep, AD, ED, Shimla, hence Rajneesh Bansal lodged a hand-written complaint dated 22.12.2024 at O/o DIG, CBI, ACB, Chandigarh, requesting to take legal action against Sh. Vishal Deep, AD; Sh. Neeraj and Sh. Sunil, both EO in ED, Shimla for demanding bribe amount of Rs.60,00,000/- and Rs. 20,00,000/- from him.

Result of Verification

In order to further substantiate the allegation of demand of bribe, it was decided to wait for the call of suspect Vishal Deep. I briefed the complainant and explained him the method of verification. Thereafter, a fresh memory card of 32 GB was inserted in Sony DVR and placed the same on person of complainant. It was explained to the complainant that the Sony DVR picks up the date and time randomly by default and prepares separate files at regular intervals.

Thereafter, at about 11:58 AM, complainant received a WhatsApp Audio Call from +1(416)771-7951 (the same no. from which Shri Bhupinder Kumar Sharma had received a call). Caller identified himself as Munawar and informed that he had received number of complainant (Rajneesh Bansal) from Shimla. On this, complainant Rajneesh Bansal inquired from him whether Sh. Vishal Deep had given the phone no. and to this instantly Munawar replied yes and after few seconds he denied the same and further informed that he got the phone no from Shimla. Munawar (caller) asked the complainant to meet around 5:00 PM and in reply to this complainant informed him that his wife is admitted in Paras Hospital and he could not leave the hospital. Further, the complainant informed him that the bribe amount of Rs.60 lacs is arranged. The complainant further requested him to collect the bribe amount from the parking of Paras Hospital, Panchkula. Munawar acceded to the request of the complainant. After hearing both the recorded voices of Rahim and Munawar, it appears that both might be the same person using same phone number but with different pseudo-names.

Shri Rajwant Singh, Constable took out the Sony DVR from the person of the complainant and switched it off. From the said conversation, it was substantiated that one tout Munawar was coming to collect bribe of Rs.60,00,000/- from the complainant Rajnish Bansal on behalf of suspect Sh. Vishal Deep, AD.

(Transcription of the call recording was prepared with the help of complainant and the same is enclosed with the report).

Place and time of delivery of bribe amount was not decided during WhatsApp Audio Call. Hence it was decided to further wait for another call of Mr.Munawar. As the complainant did not have the mobile number of suspect Visahl Deep, it was not possible to further verify the allegation with respect to Vishal Deep.

Recommendation:

In the light of the above mentioned facts, it is recommended that a regular case may please be registered under section 7A of PC Act, 1988 (as amended in 2018) against suspect Munawar for demanding bribe amount of Rs.60,00,000/- on behalf of Sh. Vishal Deep, AD, ED, Shimla.

Role of Sh. Neeraj and Sh. Sunil, both EO in ED, Shimla for demanding bribe amount of Rs. 20,00,000/- was not confirmed during verification hence their roles may be inquired into during the investigation.

Report submitted please.



(Sonal Mishra)

Inspector of Police,
CBI, ACB, Chandigarh.

~~W/HOB~~

RC be registered. Insp. Vikas to carry trap proceedings.
Pl p/u draft RC.



22/12/2024

Transcription of telephonic conversation held between Sh. Rajneesh Bansal (Complainant) and Sh. Munwar (Suspect) via Whatsapp during the verification on 22.12.2024.

C-complainant

S-Suspect

Time: - 48 Seconds

C - Hello

S - Haan ji, Sir. Munwar bol rha hu, Shimla se number diya aaj evening me milna h aapse.

C - Acha Sir__ Vishal Sir ne number diya hai

S - Haan Ji...Haanji...nhi Shimla se number aaya hai aapka.....unhone ne nhi diya

C - Acha ji..

S - evening main...evening main 5 baje k aas pass mile....

C - Haan, Sir...main na idhar milte hai hum...Yahan pe Paras Hospital k saath....meri wife bimar hai actually.

S - Haan Haan unhone bataya hai....

C - Haan ji...Haan ji...

S - Thik hain to 5:15 - 5:30 baje kea aas pass milte hain....main evening main call karta hoon aapko...

C - Itna bas thik hai Sir mere pass saman six zero tyaar hain...

S - Thik hai..Thik...

C - Thik hai...To hai na me aapko Paras Hospital ke pass milunga..main waha par aa jaunga parking main Sir...

S - Thik hai...

C - thik hai sir...thik hai....



22-12-24

The DIG

CBI ACB

Chandigarh

Sub:- Demand of bribe of Rs. sixty lacs by Sh. Vishal Deep Asst Director ED office Shimla & Sh. Neeraj & Sunil EO's ED office, Shimla of Rs. thirty lacs.

I Rajnish Bansal am chairman of Himalayan Group of Professional Institutions Kato Amb. DIST Sonmou. A case is registered at Enforcement Directorate Shimla against my Institutions and being investigated by Sh. Vishal Deep AD & Sh. Neeraj & Sunil EO's. I was called to ED office Shimla on dated 10/12/24 & 19/12/24.

During examination Neeraj & Sunil demanded a bribe of Rs. thirty lacs & then they took me before Sh. Vishal Deep (AD), ED Shimla. Initially he demanded Rs. 1.10 Cr & on further negotiation when I claim by inability to pay Rs. 1.10 Cr then Vishal Deep (AD) settled on Rs. sixty lacs. He further threatened me if the bribe amount was not paid upto Sunday he will arrest me in the present case. He has taken my mobile no & further said he will call me on Sunday & collect the bribe amount from me at Chandigarh.

sir, I don't want to pay bribe amount
and a legal appropriate action against
Sh. Vishal Deep (A.D), Neeraj & Sunil EOW
may be taken.

9992500288

Dr. /
RASHNISH BANSAL
S/o Sh. Narekh Gupta
Opposite Devi Mandir
Ladua (Kunkshela)